



B2C LIMITED WARRANTY

TERMS & CONDITIONS

CONSOLIDATED VERSION

Pulse Pilates Sdn. Bhd. (1569742-U)

Malaysia | Version 2.0

Applies to Equipment delivered in Malaysia to consumer purchasers

LIMITED WARRANTY TERMS & CONDITIONS — CONSUMER PURCHASES

These Limited Warranty Terms & Conditions (“Warranty”) apply to Pilates equipment and related products (“Product” or “Equipment”) supplied by Pulse Pilates Sdn. Bhd. (1569742-U) (“Pulse”) to an individual purchasing primarily for personal, domestic or household use (“Customer”, “you”).

This Warranty should be read together with the invoice, sales order, product information, care instructions and any operating or safety instructions supplied by Pulse.

Nothing in this Warranty is intended to exclude, restrict or modify any right or remedy that cannot lawfully be excluded under applicable Malaysian law, including the Consumer Protection Act 1999.

1. SCOPE AND APPLICATION

This Warranty applies where all of the following are true:

- the Equipment was purchased directly from Pulse;
- the Equipment was delivered to an address in Malaysia; and
- the Equipment was purchased on consumer terms for personal, domestic or household use.

Equipment purchased by a studio, gym, company, institution or other business — or purchased on any Pulse business, trade or partner pricing tier — is supplied under Pulse's separate B2B Limited Warranty Terms, not under this Warranty. Equipment delivered outside Malaysia is supplied under separate terms notified at the time of sale.

Where there is any doubt as to which terms apply, the terms identified on the invoice for the relevant Equipment prevail.

2. WARRANTY PERIOD

Subject to the terms, exclusions and limitations set out below, Pulse provides the following limited warranty from the date of delivery of the Equipment:

Structural Components — Six (6) Months

Pulse warrants the principal load-bearing structural components of the Equipment against defects in materials or workmanship for a period of six (6) months.

Structural components may include, where applicable, the main frame, structural rails and other principal load-bearing components forming part of the Equipment.

For the avoidance of doubt, a defect or failure affecting an individual replaceable component does not automatically constitute a structural defect or entitle the Customer to replacement of the entire Equipment.

Springs — Three (3) Months

Springs supplied with the Equipment are warranted against defects in materials or workmanship for a period of three (3) months.

Normal changes in spring tension, resistance, appearance or performance arising from ordinary use, frequency of use, storage conditions, environmental conditions or normal fatigue are not considered defects in materials or workmanship.

Other Replaceable Components

Unless otherwise expressly stated by Pulse in writing, components including but not limited to ropes, straps, loops, handles, pulleys, wheels, bearings, clips, hooks, knobs, pins, cables, upholstery and similar serviceable or replaceable parts are considered wear, service or consumable components.

Failure or deterioration resulting from ordinary wear and tear is not covered by this Warranty.

Where Pulse determines that such a component has failed prematurely due to a defect in materials or workmanship, Pulse may, at its discretion and subject to applicable law, repair or replace the affected component.

Ex-Display, Clearance and Converted Units

Equipment sold as ex-display, showroom, clearance, sample or previously used stock, and Equipment supplied on conversion from a rental arrangement, is warranted only to the extent expressly stated in writing on the invoice for that Equipment. Where the invoice states no warranty period for such Equipment, coverage will be determined by the written terms of sale and applicable law. Nothing in this clause excludes any right or remedy that cannot lawfully be excluded.

Such Equipment may show cosmetic wear consistent with prior display or use, and clause 3 does not apply to it.

When the Warranty Period Starts

The warranty period runs from the date the Equipment is delivered to the Customer. Where delivery is deferred at the Customer's request, the warranty period runs from the date Pulse first made the Equipment available for delivery.

3. COSMETIC AND AESTHETIC CONDITION

The Customer should inspect the Equipment promptly upon delivery.

Any visible cosmetic damage reasonably attributable to transportation or delivery, including significant scratches, dents, tears or other visible damage, should be reported to Pulse with clear photographs or videos within forty-eight (48) hours of delivery, or as soon as reasonably practicable thereafter.

Prompt reporting helps Pulse establish that damage occurred in transit rather than after delivery. Cosmetic or aesthetic matters reported later will generally be more difficult to attribute to transit, and may not be treated as warranty defects — unless the Customer demonstrates that the issue was not reasonably discoverable upon delivery, or applicable law provides otherwise.

Minor cosmetic imperfections that do not materially affect the safe operation or functionality of the Equipment are not considered structural defects.

4. HANDCRAFTED PRODUCTS AND NATURAL MATERIALS

Certain Pulse products are manufactured, assembled or finished by hand. Certain Products may also incorporate natural materials including, without limitation, maple wood and other natural timber materials.

The Customer acknowledges that natural materials are inherently variable. Variations including, but not limited to:

- wood grain;
- colour and tone;
- knots and natural markings;
- mineral streaks;
- texture;
- minor dimensional variations;
- differences between individual pieces of timber;
- minor variations in handcrafted joints or finishing; and
- gradual changes in colour or appearance caused by age, light, humidity or environmental conditions

are natural characteristics of the material and/or handcrafted manufacturing process and do not, by themselves, constitute defects.

Products made from natural materials are not represented as being visually identical to display units, photographs, samples or other units of the same model.

5. WHAT IS NOT COVERED

This Warranty does not cover damage, deterioration, malfunction or failure resulting from:

- normal wear and tear;
- scratches, scuffs, dents, stains, fading or discolouration arising after delivery;
- ordinary deterioration of upholstery, ropes, straps, handles or other wear components;
- misuse, abuse, negligence or improper handling;
- use of the Equipment contrary to its intended purpose;

- failure to follow operating, maintenance or safety instructions;
- incorrect assembly, installation, adjustment, relocation or repair performed by the Customer or an unauthorised third party;
- unauthorised modification or alteration of the Equipment;
- use of non-approved replacement parts or accessories;
- exceeding recommended weight or usage limitations;
- dropping, impact or collision;
- exposure to excessive moisture, water, direct sunlight, heat, extreme temperatures or unsuitable environmental conditions;
- improper storage;
- corrosion or deterioration caused by sweat, moisture, cleaning chemicals or unsuitable cleaning products;
- damage caused by pets, insects, pests or external objects;
- accidental damage;
- commercial, studio, institutional or professional use of Equipment purchased under B2C consumer terms; or
- any other damage not attributable to a defect in materials or workmanship existing in the Product.

6. WARRANTY CLAIM PROCEDURE

A claim under this Warranty should be notified to Pulse in writing before the applicable warranty period in clause 2 expires. A claim notified after that period will not ordinarily be covered by this voluntary Warranty, without limiting any right or remedy that cannot lawfully be excluded under applicable law.

The Customer should notify Pulse as soon as reasonably practicable after discovering a suspected defect and preferably within seven (7) days, using the contact details below:

Email pilatesreformer.my@gmail.com

Telephone +6018-929 4693

Address A-30, Level 2, Sentul Point, Puncak Sentul, No. 8 Jalan Sentul Perdana, 51000 Kuala Lumpur

Pulse will acknowledge a warranty claim within five (5) business days of receipt and will advise the next steps, including whether an inspection is required.

Valid proof of purchase from Pulse is a condition of any claim under this Warranty. Pulse may also require the Customer to provide:

- 1 the Equipment model and, where applicable, serial number;
- 2 photographs and/or videos showing the reported issue;
- 3 information regarding installation, usage and maintenance; and
- 4 reasonable access to the Equipment for inspection or diagnosis.

The Customer should not dismantle, modify or arrange unauthorised repairs to the affected part before Pulse has had a reasonable opportunity to inspect or assess the issue, except where reasonably necessary to prevent injury or further damage.

7. INSPECTION AND DETERMINATION

A warranty claim is subject to reasonable inspection and assessment by Pulse or its authorised representative.

Pulse will, acting reasonably and in good faith, determine whether the reported condition concerns:

- a defect in materials or workmanship;
- a structural defect;
- a defective replaceable component;
- normal wear and tear;
- a cosmetic or aesthetic condition;
- a natural characteristic of the materials used;
- improper use, maintenance or installation; or
- another condition excluded from this Warranty.

Where reasonably necessary, Pulse may require physical inspection of the Equipment before determining the appropriate remedy.

Pulse will give the Customer its determination in writing on request. Where the Customer disagrees, the Customer may submit further information for reconsideration. This clause does not purport to make Pulse's determination binding on the Customer to the extent that applicable law provides otherwise.

8. REPAIR BEFORE WHOLE-UNIT REPLACEMENT

Where a valid warranty defect can reasonably be rectified by adjustment, repair or replacement of an affected component, Pulse may provide such adjustment, repair or component replacement instead of replacing the entire Equipment, subject always to the Customer's rights under applicable law.

Examples may include replacement or adjustment of springs, straps, ropes, pulleys, wheels, bearings, handles, upholstery, hardware or other serviceable components.

The existence of a defective, worn, misaligned or replaceable component does not, by itself, entitle the Customer to a new or replacement unit where the issue can reasonably and safely be rectified through repair, adjustment or component replacement.

Nothing in this clause limits any remedy that cannot lawfully be excluded under applicable law.

9. WARRANTY REMEDIES

Where Pulse confirms a valid warranty claim, Pulse may, subject to applicable law and depending on the nature of the defect:

- adjust the Equipment;
- repair the affected component;
- replace the defective component with the same or a reasonably equivalent component; or
- where repair or component replacement is not reasonably practicable, provide another remedy required or permitted by applicable law.

Replacement components may have minor visual or manufacturing differences from the original component provided that such differences do not materially impair the safe operation or intended functionality of the Equipment.

Repair or replacement of a component does not restart or extend the original warranty period except where required by law. A replaced component is warranted only for the unexpired remainder of the original warranty period.

10. COSTS, ACCESS AND SERVICE LOCATION

Where Pulse confirms a valid warranty claim within the applicable warranty period:

- Pulse bears the cost of the replacement component and the labour required to fit it;
- Pulse bears the cost of one standard service visit within the Klang Valley; and
- for addresses outside the Klang Valley, Pulse will quote any travel or transport charge before attending, and will not proceed until the Customer has accepted it. Where the claim is confirmed as a valid warranty defect, Pulse will not charge a call-out or inspection fee.

Where an inspection establishes that the reported condition is not covered by this Warranty, Pulse may charge a reasonable call-out, inspection and repair fee. Pulse will notify the Customer of the estimated fee before any chargeable work begins, and will not proceed without the Customer's agreement.

The Customer is responsible for providing safe and reasonable access to the Equipment, including any building access permits, lift bookings or management approvals required at the delivery address.

11. SPARE PARTS AND DISCONTINUED MODELS

Pulse will use reasonable endeavours to maintain a supply of spare parts for Equipment within its warranty period. Pulse is not liable for delay or failure in performing any obligation under this Warranty to the extent caused by circumstances beyond its reasonable control, including manufacturing or shipping delays, customs clearance, supplier failure, industrial action, natural events or acts of government.

Where a component is no longer available, Pulse may supply a reasonably equivalent component that does not materially impair the safe operation or intended functionality of the Equipment. Where no equivalent component is available, Pulse will provide another remedy required or permitted by applicable law.

12. SAFETY AND PROPER USE

Pilates equipment involves physical movement, resistance and exercise and must be used responsibly and in accordance with its intended purpose.

The Customer is responsible for ensuring that:

- the Equipment is correctly assembled and installed;
- the Equipment is positioned on a stable and suitable surface;
- all components are inspected before use;
- springs, straps, ropes, clips, hooks and other adjustable or moving components are properly secured before use;
- damaged, loose, excessively worn or malfunctioning Equipment is not used;
- users comply with operating and safety instructions, including any stated maximum user weight; and
- users obtain appropriate professional or medical advice where necessary before undertaking physical exercise.

If the Customer becomes aware of unusual movement, noise, imbalance, looseness, damage, excessive wear or suspected malfunction, use of the affected Equipment should cease until the issue has been assessed and, where necessary, rectified.

13. PERSONAL INJURY AND ASSUMPTION OF RISK

The Customer acknowledges that physical exercise, including Pilates, carries inherent risks of physical strain and injury.

To the fullest extent permitted by Malaysian law, Pulse shall not be responsible for injury, loss or damage arising from:

- misuse or improper use of the Equipment;
- failure to follow instructions or warnings;
- incorrect setup, adjustment or assembly not performed by Pulse or its authorised representative;
- continued use after a defect, abnormality or excessive wear becomes apparent;
- use beyond the Equipment's intended purpose or recommended limitations;
- unauthorised modification or repair;
- negligent or unsafe use;
- exercises performed without appropriate instruction, supervision or physical capability; or
- circumstances outside Pulse's reasonable control.

Pulse does not exclude or limit its liability for death or personal injury caused by Pulse's own negligence, for fraud or fraudulent misrepresentation, or for any other liability that cannot lawfully be excluded or limited.

14. LIMITATION OF LIABILITY

To the fullest extent permitted by law, Pulse shall not be liable for indirect, incidental, special or consequential losses arising from a Product defect or inability to use the Equipment, being losses not directly resulting from a breach by Pulse.

To the fullest extent permitted by law, Pulse's total aggregate liability arising out of or in connection with the Equipment and this Warranty — whether in contract, tort (including negligence), statute or otherwise — shall not exceed the price actually paid by the Customer for the Equipment giving rise to the claim.

This clause does not apply to liability that cannot lawfully be excluded or limited, including as set out in clause 13.

15. TRANSFERABILITY

Unless otherwise agreed by Pulse in writing or required by applicable law, this Warranty applies only to the original purchaser and is not transferable upon resale, transfer or disposal of the Equipment.

Valid proof of purchase is required for all warranty claims.

This clause does not affect any right of redress a subsequent acquirer may have against Pulse under applicable law.

16. MAINTENANCE

The Customer is responsible for routine inspection, cleaning, tightening, adjustment and maintenance of the Equipment in accordance with Pulse's instructions.

Components subject to movement, friction or repeated loading — including springs, ropes, straps, pulleys, wheels and hardware — should be inspected regularly and replaced when worn.

Failure to perform reasonable maintenance may invalidate warranty coverage to the extent that the failure contributed to the reported defect or damage.

17. PRODUCT IMAGES, DISPLAY UNITS AND SAMPLES

Product photographs, videos, showroom units, samples and marketing materials are intended to provide a reasonable representation of the Product.

Due to natural material variation, handcrafted manufacturing, lighting, photography, screen settings and production batches, minor differences in colour, grain, texture, dimensions, finish and appearance may occur.

Such reasonable variations are not considered defects provided they do not materially affect the safe operation or intended functionality of the Equipment.

18. NO UNAUTHORISED WARRANTIES OR REPRESENTATIONS

No employee, sales representative, installer, reseller or other person is authorised to vary, extend or provide additional warranties on behalf of Pulse unless expressly confirmed in writing by an authorised representative of Pulse Pilates Sdn. Bhd.

This clause does not affect any statement or representation actually made by Pulse or its representatives on which the Customer relied in deciding to purchase the Equipment.

19. PERSONAL DATA

Personal data provided in connection with a warranty claim — including contact details, delivery address, and any photographs or videos submitted — will be collected and processed by Pulse for purposes connected with assessing, administering and resolving the claim, in accordance with applicable Malaysian personal data protection law and any privacy notice made available by Pulse.

20. MALAYSIAN CONSUMER LAW

These Warranty Terms operate in addition to any statutory rights available to consumers under applicable Malaysian law.

Where any provision of these Terms conflicts with a mandatory provision of applicable law, the mandatory provision shall prevail to the extent of the inconsistency, and the remaining provisions shall continue to apply.

21. GOVERNING LAW

These Warranty Terms & Conditions shall be governed by and interpreted in accordance with the laws of Malaysia, and the courts of Malaysia shall have jurisdiction.

By purchasing and accepting delivery of the Equipment, the Customer acknowledges that they have had the opportunity to review these Warranty Terms & Conditions and agrees that warranty claims will be handled in accordance with these Terms, subject always to applicable law.

Pulse Pilates Sdn. Bhd.